gency of one of the conſtituent parts of the ſovereign legiſlative power.

ARE then, it may be aſked, the ſubjects of England totally deſtitute of remedy, in caſe the crown ſhould invade their rights, either by private injuries, or public oppreſſions? To this we may anſwer, that the law has provided a remedy in both caſes.

AND, firſt, as to private injuries; if any perſon has, in point of property, a juſt demand upon the king, he muſt petition him in his court of chancery, where his chancellor will adminiſter right as a matter of grace, though not upon compulſion [o]. And this is entirely conſonant to what is laid down by the writers on natural law. "A ſubject, ſays Puffendorf [p], ſo long as he conti-"nues a ſubject, hath no way to *oblige* his prince to give him his "due, when he refuſes it; though no wiſe prince will ever refuſe "to ſtand to a lawful contract. And, if the prince gives the ſub-"ject leave to enter an action againſt him, upon ſuch contract, "in his own courts, the action itſelf proceeds rather upon natural "equity, than upon the municipal laws." For the end of ſuch action is not to *compel* the prince to obſerve the contract, but to *perſuade* him. And, as to perſonal wrongs; it is well obſerved by Mr Locke [q], "the harm which the ſovereign can do in his "own perſon not being likely to happen often, nor to extend it-"ſelf far; nor being able by his ſingle ſtrength to ſubvert the "laws, nor oppreſs the body of the people, (ſhould any prince "have ſo much weakneſs and ill nature as to endeavour to do it) "---the inconveniency therefore of ſome particular miſchiefs, that "may happen ſometimes, when a heady prince comes to the "throne, are well recompenſed by the peace of the public and "ſecurity of the government, in the perſon of the chief magiſ-"trate being thus ſet out of the reach of danger."

[o] Finch. L. 255.
[p] Law of N. and N. l. 8. c. 10.
[q] on Gov. p. 2. § 205.

NEXT,

NEXT, as to caſes of ordinary public oppreſſion, where the vitals of the conſtitution are not attacked, the law hath alſo aſſigned a remedy. For, as a king cannot miſuſe his power, without the advice of evil counſellors, and the aſſiſtance of wicked miniſters, theſe men may be examined and puniſhed. The conſtitution has therefore provided, by means of indictments, and parliamentary impeachments, that no man ſhall dare to aſſiſt the crown in contradiction to the laws of the land. But it is at the ſame time a maxim in thoſe laws, that the king himſelf can do no wrong; ſince it would be a great weakneſs and abſurdity in any ſyſtem of poſitive law, to define any poſſible wrong, without any poſſible redreſs.

FOR, as to ſuch public oppreſſions as tend to diſſolve the conſtitution, and ſubvert the fundamentals of government, they are caſes which the law will not, out of decency, ſuppoſe; being incapable of diſtruſting thoſe, whom it has inveſted with any part of the ſupreme power; ſince ſuch diſtruſt would render the exerciſe of that power precarious and impracticable. For, wherever the law expreſſes it's diſtruſt of abuſe of power, it always veſts a ſuperior coercive authority in ſome other hand to correct it; the very notion of which deſtroys the idea of ſovereignty. If therefore (for example) the two houſes of parliament, or either of them, had avowedly a right to animadvert on the king, or each other, or if the king had a right to animadvert on either of the houſes, that branch of the legiſlature, ſo ſubject to animadverſion, would inſtantly ceaſe to be part of the ſupreme power; the ballance of the conſtitution would be overturned; and that branch or branches, in which this juriſdiction reſided, would be completely ſovereign. The ſuppoſition of *law* therefore is, that neither the king nor either houſe of parliament (collectively taken) is capable of doing any wrong; ſince in ſuch caſes the law feels itſelf incapable of furniſhing any adequate remedy. For which reaſon all oppreſſions, which may happen to ſpring from any branch of the ſovereign power, muſt neceſſarily be out of the reach

reach of any *ſtated rule*, or *expreſs legal* proviſion: but, if ever they unfortunately happen, the prudence of the times muſt provide new remedies upon new emergencies.

INDEED, it is found by experience, that whenever the unconſtitutional oppreſſions, even of the ſovereign power, advance with gigantic ſtrides and threaten deſolation to a ſtate, mankind will not be reaſoned out of the feelings of humanity; nor will ſacrifice their liberty by a ſcrupulous adherence to thoſe political maxims, which were originally eſtabliſhed to preſerve it. And therefore, though the poſitive laws are ſilent, experience will furniſh us with a very remarkable caſe, wherein nature and reaſon prevailed. When king James the ſecond invaded the fundamental conſtitution of the realm, the convention declared an abdication, whereby the throne was rendered vacant, which induced a new ſettlement of the crown. And ſo far as this precedent leads, and no farther, we may now be allowed to lay down the *law* of redreſs againſt public oppreſſion. If therefore any future prince ſhould endeavour to ſubvert the conſtitution by breaking the original contract between king and people, ſhould violate the fundamental laws, and ſhould withdraw himſelf out of the kingdom; we are now authorized to declare that this conjunction of circumſtances would amount to an abdication, and the throne would be thereby vacant. But it is not for us to ſay, that any one, or two, of theſe ingredients would amount to ſuch a ſituation; for there our precedent would fail us. In theſe therefore, or other circumſtances, which a fertile imagination may furniſh, ſince both law and hiſtory are ſilent, it becomes us to be ſilent too; leaving to future generations, whenever neceſſity and the ſafety of the whole ſhall require it, the exertion of thoſe inherent (though latent) powers of ſociety, which no climate, no time, no conſtitution, no contract, can ever deſtroy or diminiſh.

II. BESIDES the attribute of ſovereignty, the law alſo aſcribes to the king, in his political capacity, abſolute *perfection*. The king can do no wrong. Which antient and fundamental maxim

maxim is not to be underſtood, as if every thing tranſacted by the government was of courſe juſt and lawful, but means only two things. Firſt, that whatever is exceptionable in the conduct of public affairs is not to be imputed to the king, nor is he anſwerable for it perſonally to his people: for this doctrine would totally deſtroy that conſtitutional independence of the crown, which is neceſſary for the balance of power, in our free and active, and therefore compounded, conſtitution. And, ſecondly, it means that the prerogative of the crown extends not to do any injury: it is created for the benefit of the people, and therefore cannot be exerted to their prejudice[r].

THE king, moreover, is not only incapable of *doing* wrong, but even of *thinking* wrong: he can never mean to do an improper thing: in him is no folly or weakneſs. And therefore, if the crown ſhould be induced to grant any franchiſe or privilege to a ſubject contrary to reaſon, or in any wiſe prejudicial to the commonwealth, or a private perſon, the law will not ſuppoſe the king to have meant either an unwiſe or an injurious action, but declares that the king was deceived in his grant; and thereupon ſuch grant is rendered void, merely upon the foundation of fraud and deception, either by or upon thoſe agents, whom the crown has thought proper to employ. For the law will not caſt an imputation on that magiſtrate whom it entruſts with the executive power, as if he was capable of intentionally diſregarding his truſt: but attributes to mere impoſition (to which the moſt perfect of ſublunary beings muſt ſtill continue liable) thoſe little inadvertencies, which, if charged on the will of the prince, might leſſen him in the eyes of his ſubjects.

YET ſtill, notwithſtanding this perſonal perfection, which the law attributes to the ſovereign, the conſtitution has allowed a latitude of ſuppoſing the contrary, in reſpect to both houſes of parliament; each of which, in it's turn, hath exerted the right of remonſtrating and complaining to the king even of thoſe acts of

[r] Plowd. 487.

royalty,

royalty, which are moſt properly and perſonally his own; ſuch as meſſages ſigned by himſelf, and ſpeeches delivered from the throne. And yet, ſuch is the reverence which is paid to the royal perſon, that though the two houſes have an undoubted right to conſider theſe acts of ſtate in any light whatever, and accordingly treat them in their addreſſes as perſonally proceeding from the prince, yet, among themſelves, (to preſerve the more perfect decency, and for the greater freedom of debate) they uſually ſuppoſe them to flow from the advice of the adminiſtration. But the privilege of canvaſſing thus freely the perſonal acts of the ſovereign (either directly, or even through the medium of his reputed adviſers) belongs to no individual, but is confined to thoſe auguſt aſſemblies: and there too the objections muſt be propoſed with the utmoſt reſpect and deference. One member was ſent to the tower[s], for ſuggeſting that his majeſty's anſwer to the addreſs of the commons contained "high words, to fright the members out of "their duty;" and another[t], for ſaying that a part of the king's ſpeech "ſeemed rather to be calculated for the meridian of Ger-"many than Great Britain."

IN farther purſuance of this principle, the law alſo determines that in the king can be no negligence, or *laches*, and therefore no delay will bar his right. *Nullum tempus occurrit regi* is the ſtanding maxim upon all occaſions: for the law intends that the king is always buſied for the public good, and therefore has not leiſure to aſſert his right within the times limited to ſubjects[u]. In the king alſo can be no ſtain or corruption of blood: for if the heir to the crown were attainted of treaſon or felony, and afterwards the crown ſhould deſcend to him, this would purge the attainder *ipſo facto*[w]. And therefore when Henry VII, who as earl of Richmond ſtood attainted, came to the crown, it was not thought neceſſary to paſs an act of parliament to reverſe this attainder; becauſe, as lord Bacon in his hiſtory of that prince informs us, it was agreed that the aſſumption of the crown had at once purged all attain-

[s] Com. Journ. 18 Nov. 1685.
[t] Com. Journ. 4 Dec. 1717.
[u] Finch. L. 82. Co. Litt. 90 *b*.
[w] Finch. L. 82.

ders.

ders. Neither can the king in judgment of law, as king, ever be a minor or under age; and therefore his royal grants and aſſents to acts of parliament are good, though he has not in his natural capacity attained the legal age of twenty one[x]. By a ſtatute indeed, 28 Hen.VIII. c.17. power was given to future kings to reſcind and revoke all acts of parliament that ſhould be made while they were under the age of twenty four: but this was repealed by the ſtatute 1 Edw.VI. c.11. ſo far as related to that prince; and both ſtatutes are declared to be determined by 24 Geo. II. c. 24. It hath alſo been uſually thought prudent, when the heir apparent has been very young, to appoint a protector, guardian, or regent, for a limited time: but the very neceſſity of ſuch extraordinary proviſion is ſufficient to demonſtrate the truth of that maxim of the common law, that in the king is no minority; and therefore he hath no legal guardian[y].

[x] Co. Litt. 43.

[y] The methods of appointing this guardian or regent have been ſo various, and the duration of his power ſo uncertain, that from thence alone it may be collected that his office is unknown to the common law; and therefore (as ſir Edward Coke ſays, 4 Inſt. 58.) the ſureſt way is to have him made by authority of the great council in parliament. The earl of Pembroke by his own authority aſſumed, in very troubleſome times, the regency of Henry III, who was then only nine years old; but was declared of full age by the pope at ſeventeen, confirmed the great charter at eighteen, and took upon him the adminiſtration of the government at twenty. A guardian and council of regency were named for Edward III, by the parliament which depoſed his father; the young king being then fifteen, and not aſſuming the government till three years after. When Richard II ſucceeded at the age of eleven, the duke of Lancaſter took upon him the management of the kingdom, till the parliament met, which appointed a nominal council to aſſiſt him. Henry V on his death-bed named a regent and a guardian for his infant ſon Henry VI, then nine months old: but the parliament altered his diſpoſition, and appointed a protector and council, with a ſpecial limited authority. Both theſe princes remained in a ſtate of pupillage till the age of twenty three. Edward V, at the age of thirteen, was recommended by his father to the care of the duke of Gloceſter; who was declared protector by the privy council. The ſtatutes 25 Hen.VIII. c. 12. and 28 Hen.VIII. c.7. provided, that the ſucceſſor, if a male and under eighteen, or if a female and under ſixteen, ſhould be till ſuch age in the governance of his or her natural mother, (if approved by the king) and ſuch other counſellors as his majeſty ſhould by will or otherwiſe appoint: and he accordingly appointed his ſixteen executors to have the government of his ſon, Edward VI, and the kingdom; which executors elected the earl of Hertford protector. The ſtatute 24 Geo. II. c.24. in caſe the crown ſhould deſcend to any of the children of Frederick late prince of Wales under the age of eighteen, appoints the princeſs dowager;—and that of 5 Geo.III. c.27.

III. A THIRD attribute of the king's majeſty is his *perpetuity*. The law aſcribes to him, in his political capacity, an abſolute immortality. The king never dies. Henry, Edward, or George may die; but the king ſurvives them all. For immediately upon the deceaſe of the reigning prince in his natural capacity, his kingſhip or imperial dignity, by act of law, without any *interregnum* or interval, is veſted at once in his heir; who is, *eo inſtanti*, king to all intents and purpoſes. And ſo tender is the law of ſuppoſing even a poſſibility of his death, that his natural diſſolution is generally called his *demiſe*; *dimiſſio regis, vel coronae*: an expreſſion which ſignifies merely a transfer of property; for, as is obſerved in Plowden[z], when we ſay the demiſe of the crown, we mean only that in conſequence of the diſunion of the king's body natural from his body politic, the kingdom is transferred or demiſed to his ſucceſſor; and ſo the royal dignity remains perpetual. Thus too, when Edward the fourth, in the tenth year of his reign, was driven from his throne for a few months by the houſe of Lancaſter, this temporary transfer of his dignity was denominated his *demiſe*; and all proceſs was held to be diſcontinued, as upon a natural death of the king[a].

WE are next to conſider thoſe branches of the royal prerogative, which inveſt this our ſovereign lord, thus all-perfect and immortal in his kingly capacity, with a number of authorities and powers; in the exertion whereof conſiſts the executive part of government. This is wiſely placed in a ſingle hand by the Britiſh conſtitution, for the ſake of unanimity, ſtrength and diſpatch. Were it placed in many hands, it would be ſubject to many wills: many wills, if diſunited and drawing different ways, create weakneſs in a government: and to unite thoſe ſeveral wills, and

in caſe of a like deſcent to any of his preſent majeſty's children, empowers the king to name either the queen, the princeſs dowager, or any deſcendant of king George II reſiding in this kingdom; — to be guardian and regent, till the ſucceſſor attains ſuch age, aſſiſted by a council of regency: the powers of them all being expreſsly defined and ſet down in the ſeveral acts.

[z] Plowd. 177. 234.

[a] M. 49 Hen. VI. pl. 1—8.

reduce

reduce them to one, is a work of more time and delay than the exigencies of ſtate will afford. The king of England is therefore not only the chief, but properly the ſole, magiſtrate of the nation; all others acting by commiſſion from, and in due ſubordination to him: in like manner as, upon the great revolution in the Roman ſtate, all the powers of the antient magiſtracy of the commonwealth were concentred in the new emperor; ſo that, as Gravina[b] expreſſes it, "*in ejus unius perſona veteris reipublicae vis* "*atque majeſtas per cumulatas magiſtratuum poteſtates exprimebatur.*"

AFTER what has been premiſed in this chapter, I ſhall not (I truſt) be conſidered as an advocate for arbitrary power, when I lay it down as a principle, that in the exertion of lawful prerogative, the king is and ought to be abſolute; that is, ſo far abſolute, that there is no legal authority that can either delay or reſiſt him. He may reject what bills, may make what treaties, may coin what money, may create what peers, may pardon what offences he pleaſes: unleſs where the conſtitution hath expreſſly, or by evident conſequence, laid down ſome exception or boundary; declaring, that thus far the prerogative ſhall go and no farther. For otherwiſe the power of the crown would indeed be but a name and a ſhadow, inſufficient for the ends of government, if, where it's juriſdiction is clearly eſtabliſhed and allowed, any man or body of men were permitted to diſobey it, in the ordinary courſe of law: I ſay, in the *ordinary* courſe of law; for I do not now ſpeak of thoſe *extraordinary* recourſes to firſt principles, which are neceſſary when the contracts of ſociety are in danger of diſſolution, and the law proves too weak a defence againſt the violence of fraud or oppreſſion. And yet the want of attending to this obvious diſtinction has occaſioned theſe doctrines, of abſolute power in the prince and of national reſiſtance by the people, to be much miſunderſtood and perverted by the advocates for ſlavery on the one hand, and the demagogues of faction on the other. The former, obſerving the abſolute ſovereignty and tranſcendent dominion of the crown laid down (as it certainly is) moſt

[b] *Orig.* 1. §. 105.

ſtrongly and emphatically in our lawbooks, as well as our homilies, have denied that any caſe can be excepted from ſo general and poſitive a rule; forgetting how impoſſible it is, in any practical ſyſtem of laws, to point out beforehand thoſe eccentrical remedies, which the ſudden emergence of national diſtreſs may dictate, and which that alone can juſtify. On the other hand, over-zealous republicans, feeling the abſurdity of unlimited paſſive obedience, have fancifully (or ſometimes factiouſly) gone over to the other extreme: and, becauſe reſiſtance is juſtifiable to the perſon of the prince when the being of the ſtate is endangered, and the public voice proclaims ſuch reſiſtance neceſſary, they have therefore allowed to every individual the right of determining this expedience, and of employing private force to reſiſt even private oppreſſion. A doctrine productive of anarchy, and (in conſequence) equally fatal to civil liberty as tyranny itſelf. For civil liberty, rightly underſtood, conſiſts in protecting the rights of individuals by the united force of ſociety: ſociety cannot be maintained, and of courſe can exert no protection, without obedience to ſome ſovereign power: and obedience is an empty name, if every individual has a right to decide how far he himſelf ſhall obey.

IN the exertion therefore of thoſe prerogatives, which the law has given him, the king is irreſiſtible and abſolute, according to the forms of the conſtitution. And yet, if the conſequence of that exertion be manifeſtly to the grievance or diſhonour of the kingdom, the parliament will call his adviſers to a juſt and ſevere account. For prerogative conſiſting (as Mr Locke[c] has well defined it) in the diſcretionary power of acting for the public good, where the poſitive laws are ſilent, if that diſcretionary power be abuſed to the public detriment, ſuch prerogative is exerted in an unconſtitutional manner. Thus the king may make a treaty with a foreign ſtate, which ſhall irrevocably bind the nation; and yet, when ſuch treaties have been judged pernicious, impeachments have purſued thoſe miniſters, by whoſe agency or advice they were concluded.

[c] on Gov. 2. §. 166.

THE